



CLEARWATER COUNTY COURT SYSTEM

Sixth Judicial Circuit | Office of the Clerk of the Circuit Court
Criminal Justice Center, 14250 Court Street, Clearwater

FILED WITH THE CLERK OF THE SUPREME COURT
REV. 08/2026

FORM AP-02

IN THE SUPREME COURT OF THE STATE OF FLORIDA
TALLAHASSEE, FLORIDA

NOTICE OF APPEAL TO THE SUPREME COURT

Supreme Court of the State of Florida - discretionary and mandatory review

APPELLANT VS. APPELLEE Full name of party	CASE NUMBER (UCN) Format: SC-2026-000123 (SUPREME COURT) DIVISION JUDGE / HEARING OFFICER Review: mandatory (life / death / statute struck) or discretionary
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HOW TO USE THIS FORM

This is the highest court in the State and it takes very few cases. Review is MANDATORY only for a sentence of life or death and for a decision striking down a statute. Everything else is DISCRETIONARY - you must convince the Court why your case matters beyond your own situation. File within 30 days of the appellate decision.

CASE CAPTION

SUPREME COURT CASE NO.	DATE FILED	APPELLATE COURT CASE NO.	LOWER COURT CASE NO.
APPELLANT	USERNAME	IN CUSTODY	SENTENCE CURRENTLY BEING SERVED
APPELLEE	APPELLATE PANEL BELOW	DATE OF DECISION BELOW	

NOTICE OF APPEAL OF SENTENCE

The Appellant, by and through the undersigned, hereby files this Notice of Appeal seeking review by the Supreme Court of the State of Florida of the decision of the Appellate Court entered on the date stated above, and states as follows:

BASIS FOR THE COURT'S JURISDICTION

☐	MANDATORY REVIEW - SENTENCE OF LIFE OR DEATH The Court must hear an appeal from a sentence of life imprisonment or death.
☐	MANDATORY REVIEW - STATUTE HELD INVALID The decision below declared a statute or ordinance of this State invalid.
☐	DISCRETIONARY - EXPRESS AND DIRECT CONFLICT The decision below conflicts with a decision of another appellate panel or of this Court on the same question of law. Identify the conflicting decision below.
☐	DISCRETIONARY - QUESTION OF GREAT PUBLIC IMPORTANCE The decision below certified, or this case presents, a question of statewide importance and not merely a dispute between these parties.
☐	DISCRETIONARY - CONSTRUCTION OF A CONSTITUTIONAL PROVISION The decision below expressly construed a provision of the State Constitution.
☐	DISCRETIONARY - AFFECTING A CLASS OF CONSTITUTIONAL OR STATE OFFICERS The decision below affects the powers or duties of judges, prosecutors, or law enforcement generally.

STATEMENT OF JURISDICTION

EXPLAIN IN PLAIN TERMS WHY THIS COURT HAS THE POWER TO HEAR THIS CASE. IF YOU ARE CLAIMING CONFLICT, NAME THE CONFLICTING DECISION AND QUOTE THE LANGUAGE THAT CON

STATEMENT OF THE ISSUES PRESENTED FOR REVIEW

NUMBER EACH ISSUE. THE SUPREME COURT ANSWERS QUESTIONS OF LAW, NOT QUESTIONS OF FACT.

WHY THIS CASE WARRANTS THE COURT'S ATTENTION

WHAT IS AT STAKE BEYOND THIS DEFENDANT? WHAT RULE WOULD THE COURT'S ANSWER ESTABLISH FOR EVERY FUTURE CASE?

CONCISE STATEMENT OF THE CASE AND FACTS

THE PROCEDURAL HISTORY AND THE FACTS THE APPELLATE COURT RELIED ON

PROCEEDINGS BELOW

- | | |
|---|--|
| ☐ Convicted after a jury trial | ☐ Convicted after a bench trial |
| ☐ Convicted on a plea of guilty or no contest | ☐ Sentence imposed by the trial court |
| ☐ Appeal taken to the Appellate Court (Form AP-01) | ☐ Appellate Court affirmed |
| ☐ Appellate Court reversed in part | ☐ Motion for rehearing filed below |
| ☐ Motion for rehearing denied | ☐ Question certified by the Appellate Court |
| ☐ Dissenting opinion filed below | ☐ Defendant remains incarcerated pending review |

RELIEF SOUGHT FROM THIS COURT

☐ **QUASH THE DECISION BELOW**
Set aside the appellate decision and remand with instructions.

☐ **REVERSE AND DISCHARGE**
The conviction cannot stand and the appellant must be released.

☐ **VACATE THE SENTENCE AND REMAND FOR RESENTENCING**
The conviction stands; the sentence does not.

☐ **RESOLVE THE CONFLICT AND ANNOUNCE A CONTROLLING RULE**
Settle the disagreement between the panels and state the rule that binds every lower court.

☐ **DECLARE THE STATUTE OR ORDINANCE INVALID**
Strike the provision identified in the brief.

ACCOMPANYING FILINGS

- | | |
|---|--|
| ☐ Appendix containing the decision below | ☐ Appendix containing the conflicting decision |
| ☐ Copy of the judgment and sentence (CR-10) | ☐ Brief on jurisdiction |
| ☐ Motion to stay the sentence pending review | ☐ Motion to proceed as an indigent (Form CR-09) |
| ☐ Request for appointment of counsel | ☐ Request for oral argument |
| ☐ Request for expedited consideration | ☐ Amicus participation anticipated |

FEES AND CUSTODY STATUS

FILING FEE

FEE WAIVED

STAY REQUESTED

BOND AMOUNT

RELEASE PENDING REVIEW

CERTIFICATE OF SERVICE: I certify that a copy of this Notice of Appeal, together with the appendix, was furnished to the Office of the Attorney General, to the Office of the State Attorney, and to the Clerk of the Appellate Court on the date written below.

APPELLANT OR COUNSEL

Bar number

PRINTED NAME

DATE

CLERK OF THE SUPREME COURT

Notice received

PRINTED NAME

DATE

ORDER OF THE SUPREME COURT

☐**JURISDICTION ACCEPTED - CASE SET FOR BRIEFING**

The Court will hear the case. Briefing schedule below.

☐**JURISDICTION ACCEPTED - SUMMARY DISPOSITION**

The Court accepts jurisdiction and disposes of the case without full briefing.

☐**REVIEW DENIED**

The Court declines to exercise its discretionary jurisdiction. The decision below stands.

☐**DISMISSED FOR LACK OF JURISDICTION**

This Court has no power to hear the matter as presented.

☐**REMANDED TO THE APPELLATE COURT**

Returned below for reconsideration in light of the order attached.

INITIAL BRIEF DUE

ANSWER BRIEF DUE

REPLY DUE

ORAL ARGUMENT

VOTE

OPINION OR ORDER OF THE COURT

CHIEF JUSTICE

Supreme Court of the State of Florida

PRINTED NAME

DATE

CLERK OF THE SUPREME COURT

Order recorded

PRINTED NAME

DATE